

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: LIAM H. FARRELL	}	
License No. 097.0125904	}	Docket No. M2017-5 (2017-3)
	}	

**Amended Decision on
Respondent's Petition for Modification of Conditions**

Members participating:

Tammy Austin, Chair
William Scarlett, LCMHC
Scott Giles, Public Member
Michael Doyle, *ad hoc* member

Appearances:

Prosecuting the case: Rachel Allen, Esq.
Respondent: Present and appearing *pro se*

Presiding Officer: George K. Belcher

Exhibits:

Respondent's Exhibits: Letter of Dr. William Fink dated March 27, 2017
Letter of Alex Prolman dated April 18, 2017
Licensing information re Kristen Johanson, LCMHC

**FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

The Vermont Board of Allied Mental Health Practitioners held a hearing in the above matter on April 20, 2017 in Montpelier, Vermont. The State was represented by Rachel Allen, Esq. The Respondent appeared *pro se*. On March 26, 2017 the Respondent filed a request seeking "revision to the stipulation order". (See Respondent's letter to the Board dated March 25, 2017.) A decision was rendered in this matter on April 21, 2017 and entered on April 26, 2017. This amended decision is rendered to correct formatting from the April decision and order.

Findings of Fact

Based on the evidence presented, the Board finds as follows:

1. Liam Farrell, (the “Respondent”) has been registered as a Non-Licensed and Non-Certified Psychotherapist and is therefore subject to the regulatory authority of this Board, pursuant to 3 V.S.A. §§ 129, 129a, 26 V.S.A. Chapter 78, the Administrative Rules of the Board of Allied Mental Health Practitioners, and the Rules of the Office of Professional Regulation. His practice was conditioned by virtue of a Stipulation and Consent Order dated January 19, 2017.
2. The conditions in the Order of January 19, 2017 arose from the Respondent’s conviction of Driving While Under the Influence, Fourth Offense and Eluding a Law Enforcement Officer in April of 2015. In addition to the standard substance abuse conditions (including random alcohol testing and reporting), the Respondent was subject to the following conditions:

4. Practice Under Supervision

Respondent shall practice under supervision for a minimum of one (1) year.

- a. Supervisor Requirements. Respondent shall practice as a Non-Licensed & Non-Certified Psychotherapist under the supervision of a pre-approved Licensed Clinical Mental Health Counselor, Licensed Alcohol Drug Counselor, Marriage and Family Therapist, or doctorate level Psychologist in good-standing and Licensed by the State of Vermont (“Supervisor”). The supervising relationship shall not create a conflict of interest between the Respondent and the Supervisor. **The Supervisor must have an in-person meeting weekly with Respondent.**
- b. Respondent shall within thirty (30) days of the date of entry of this order, cause the Supervisor to submit a letter on letterhead acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
- c. If the Respondent changes employment, Respondent shall notify the OPR Enforcement Case Manager of this change and submit the name, contact information and resume of a new potential Supervisor within ten (10) days from the date of employment.

The Respondent also shall, within thirty (30) days of the date of entry of this order, case the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

6. Prohibition on Employment. Respondent must practice as a Non-Licensed & Non-Certified Psychotherapist at an agency. Respondent is prohibited from working as an independent practitioner for the length of these conditions.

3. When the Board order was made in January, 2017 it was the position of the Board that the Respondent’s employment and work at an agency was preferable to his having private supervision in an independent practice. (See Respondent’s Letter of March 25, 2017).
4. The Respondent was working at the Howard Center at the time in which he entered the stipulation. He worked as a clinician at the Howard Center’s mental health crisis center. On February 6, 2017, the Respondent’s employment at the Howard Center was terminated. That termination is being contested by the Respondent and is currently going through a legal review. The Respondent has taken the position that the termination was retaliatory and totally unjustified. In the meanwhile, the Respondent is not practicing, nor is he being supervised. According to the union steward for the Respondent’s union the Howard Center is not likely to continue the supervision of the Respondent under the Stipulation and Order Conditions. (See letter of Alex Prolman dated April 18, 2017.)
5. The Respondent has therefore requested the Board that he be able to practice under the supervision of practitioner unrelated to his employment. His hope is to practice privately

on his own, and to secure supervision from another licensed professional unrelated to his work setting. The Respondent is doubtful that he will be able to secure employment at another agency at this time.

6. The State objected to the modification, in part because of the desire of the Board in the January 19, 2017 order to require employment by an agency.
7. The Board weighed the circumstances of this case, including the original unprofessional conduct (to which the Respondent admitted), the importance of supervision in a clinical setting, the stress of private practice upon an isolated practitioner, and the need of the Respondent to have a practical and realistic path to satisfy the conditions. The Board considered the persuasive presentation of the Respondent, the letter of Mr. Prolman, and the laudatory letter of Dr. William Fink, Professor of Counseling and Psychology.
8. The Board is respectful of the positive strides the Respondent has made in his recovery and his continued professional education toward a Master's Degree.
9. The Board is of the view, however, that protection of the public requires that the Respondent not practice in isolation, despite professional "supervision" by an off-site supervising professional.

Conclusions of Law

Based on the evidence presented and the facts found above, we conclude as follows:

1. The Vermont Board of Allied Mental Health Practitioners has authority to condition the practice of a professional regulated by that board following a finding of unprofessional conduct. 26 VSA Sec. 4093 and 4082(2). The burden of proof is upon the licensee to show that he is entitled to modification of conditions. (See paragraph 17 of Order dated January 19, 2017.)
2. The Respondent has persuaded the Board that he is should have a partial modification of the conditions.

Order

Respondent's request for a Modification of the conditions upon his license is GRANTED IN PART as follows. Paragraphs 4 and 6 of the Order of January 19, 2017 shall be amended as follows (changes in bold print):

4. Practice Under Supervision

Respondent shall practice under supervision for a minimum of one (1) year.

- a. Supervisor Requirements. Respondent shall practice as a Non-Licensed & Non-Certified Psychotherapist under the supervision of a pre-approved Licensed Clinical Mental Health Counselor, Licensed Alcohol Drug Counselor, Marriage and Family Therapist, or doctorate level Psychologist in good-standing and licensed by the State of Vermont ("Supervisor"). The supervising relationship shall not create a conflict of interest between the Respondent and the Supervisor. The Supervisor must have an in-person meeting weekly with Respondent. **The Supervisor may be, or may not be, affiliated with the Respondent's employer, agency, or group practice. The Supervisor, if not the employer of the**

Respondent, shall file with the OPR Enforcement Case Manager supervision reports on a quarterly basis (every three months), in writing, evaluating successful supervision (consistently meeting all standards of practice which are supervised) and regular attendance. The Supervisor shall be pre-approved by the Board or its designee.

- b. Respondent shall within thirty (30) days of the date of entry of this order, **or from the date of engagement of a new Supervisor**, cause the Supervisor to submit a letter on letterhead acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
- c. If the Respondent changes employment, Respondent shall notify the OPR Enforcement Case Manager of this change and submit the name, contact information and resume of a new potential Supervisor within ten (10) days from the date of employment.
- d. The Respondent also shall, within thirty (30) days of the date of entry of this order, cause the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.

6. Prohibition on Employment. Respondent must practice as a Non-Licensed & Non-Certified Psychotherapist at an agency or **a group practice not owned or partially owned by the Respondent**. Respondent is prohibited from working as an independent practitioner for the length of these conditions. **The reporting requirements of paragraph five above apply whether the Respondent works for an agency or a group practice.**

Except as modified in the changes noted above, all the terms and conditions as contained in the January 19, 2017 order are continued in force.

SO ORDERED.

Vermont Allied Mental Health Practitioners

By: 
Tammy Austin, Chair

Date: May 17 2017

DATE OF ENTRY 5/22/17

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Nursing. A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, Office of Professional Regulation, 89 Main Street, Fl. 3, Montpelier, Vermont 05620-3402 within 30 days of the entry of this Order. If an appeal is filed, the Director of the Office of Professional

Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.

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MAY 05 2017
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